

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: John Adlam Jr., John Adlam Sr. and Marueen Adlam, Plaintiffs

AND:

John Charles Bonnici and Sin City, Defendants

BEFORE: The Hon. Mr. Justice J.P.L. McDermot

COUNSEL: H. Cox-Kikkajoon, for the Plaintiffs

M. Tiidus, for the Defendant, Sin City

J. Waldin for the Defendant, John Charles Bonnici (not present for argument)

HEARD: March 7, 2011

ENDORSEMENT

Background

- [1] On April 12, 2002, the Plaintiff, John Adlam Jr. was viciously assaulted. The assault took place on the sidewalk in front of the premises of the Defendant, Sin City. Sin City is a bar and nightclub in Peterborough. The Plaintiff has brought proceedings in battery arising from that assault against an alleged assailant, John Bonnici, although there is some evidence that Mr. Bonnici had an alibi. It may be that the identity of the assailant may be unknown. Mr. Adlam has also brought an action in negligence and based upon principles of occupier's liability as against Sin City.
- [2] That Defendant has now brought a motion for summary judgment requesting that the action as against Sin City be dismissed on the basis that there is no genuine issue requiring a trial within the meaning of Rule 20.04(2)(a) of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194.
- [3] As noted by Mr. Tiidus, the basic facts surrounding this case are not really in issue. On the evening of April 12, 2002, Mr. Adlam went out with some friends. They arrived at Sin City at around 11:00 p.m. and spent the evening there, only leaving when the bar closed down at 2:00 a.m. There was no evidence of any problems between Mr. Adlam and any other patrons of the bar that evening; it was described as a happy evening without altercation. The police evidence was that Mr. Adlam was intoxicated when he left the bar.

- [4] Sin City is located in what is described as a rough part of the downtown of Peterborough, Ontario. There are about four bars in the vicinity and all of them let out at 2:00 a.m. There have been problems in the past involving hooliganism, public intoxication and fighting when the bars let out. The bars had recognized that there had been problems such as this and they cooperated with one another and the police in an attempt to maintain some sort of order; on the front window of Sin City there was a sign, presumably displayed in the front of other downtown bars: "Downtown bars in partnership with the Peterborough Police will not tolerate fighting, damage to property, public intoxication. Barred from one, barred from all! Be nice!!" There is evidence that the police maintained a presence in this area of town when the bars let out until about 3:00 a.m.
- [5] That evening, the police had a cruiser close by when Sin City let its patrons out. The cruiser was across the street, but not directly adjacent to Sin City. There was security staff inside Sin City; however, for the purposes of this motion, Defendant's counsel acknowledged that there was no security presence on the sidewalk or at the doorway of Sin City's premises. In fact, there was some evidence as given on discovery by Allen Nelson, a co-owner of Sin City, that the security staff were not permitted outside of the premises of the nightclub.
- [6] In any event, when Sin City let out its patrons that evening, there were about 50 to 100 patrons on sidewalk in front of the bar. It is possible that a number of them were not from Sin City as there are other bars in the vicinity. Mr. Adlam talked with his friends while waiting for some other companions to come out of the bar, and then decided to wait in line to buy a hot dog from a hot dog vendor who had his cart set up on the side walk about 18 feet from the front doors of the club. Mr. Adlam was waiting in a line about eight feet from the doors; he had been standing there for about five minutes when an individual walked up to him and punched Mr. Adlam in the jaw. It was a "sucker punch"; Mr. Adlam did not see him coming and could not identify the assailant. Although Mr. Adlam's friend, Paul Look, says that the perpetrator came from inside the club premises, this was not in his initial statement and appears to have been an afterthought.
- [7] Sin City's co-defendant, John Bonnici was charged with the assault, but those charges have been withdrawn. He says that he was in Toronto the night of the assault. The matter has been set down for trial on the jury list and is scheduled to commence May 24, 2011.

Analysis

- [8] Mr. Tiidus, on behalf of Sin City, says that the facts are not in issue in this matter. He notes that there are not a lot of credibility issues, and the issue is duty of care. It is his client's position that there is no duty of care in this matter that is actionable. He says that there is little evidence that the assailant was a patron of the bar, and that the incident was not foreseeable under the circumstances. There is no evidence that anyone could have prevented this incident from occurring. He says that the expert's report filed by the Plaintiff is within the realm of knowledge of the average juror and as such is not admissible; it is not for an expert to usurp the position of the trier of fact. It is his client's

position that this is an appropriate case for me to act as a “gatekeeper” to remove this matter from the trial list.

[9] Mr. Cox-Kikkajoon, as expected, takes exception to this on behalf of his client. In support of his client’s position, he has filed the affidavit of Steven Summerville, who Mr. Adlam intends to call as an expert in this proceeding. Mr. Summerville states that the standard of care was not met by Sin City insofar as there was inadequate training of staff, inadequate supervision of the consumption of alcohol and an absence of security staff on the sidewalk that evening. Mr. Cox-Kikkajoon states that this is an occupier’s liability case and that the sidewalk in front of the Defendant was occupied by it giving rise to a corresponding standard of care. It is the Plaintiff’s position that there are a number of factors which should be presented to the jury, and that the facts are not clear respecting a number of facts which are in issue, including the occupation of the sidewalk and the duty of care of a reasonable barkeep to maintain safety in its “premises” under the circumstances of this case.

[10] Under Rule 20.04(2)(a) of the *Rules of Civil Procedure*, I may grant summary judgment if I am “satisfied that there is no genuine issue requiring a trial with respect to a claim or defence.”

[11] The rule has recently been expanded to allow me to make determinations as to credibility and to weigh the evidence in coming to a conclusion. In other words, I can examine the evidence necessary to determine whether there is a genuine issue to go to trial. See Rule 20.04(2.1) which states:

(2.1) In determining under clause (2) (a) whether there is a genuine issue requiring a trial, the court shall consider the evidence submitted by the parties and, if the determination is being made by a judge, the judge may exercise any of the following powers for the purpose, unless it is in the interest of justice for such powers to be exercised only at a trial:

1. Weighing the evidence.
2. Evaluating the credibility of a deponent.
3. Drawing any reasonable inference from the evidence.

[12] A fairly comprehensive analysis of the machinery of summary judgment and the change in the rule was provided by Justice Perell in *Healey v. Lakeridge Health Corp.*, [2010] O.J. No. 417 (S.C.J.). In that case, Justice Perell examines the reasons for the recent changes in the rule regarding summary judgment [at para. 20, 22 and 23]:

Semantically, there is not much difference between “no genuine issue for trial” and “no genuine issue requiring a trial,” which leads one to ask what purpose was being achieved by the change. As a matter of statutory interpretation, this is a way of asking what was the problem that the Civil Rules Committee was trying to remedy by amending the rule? The answer is that the problem was that: (1) the

former test was regarded as too strict with the result that the rule was not achieving its purposes; and (2) the utility of the rule was being impaired by case law that had held that a motions judge could not assess credibility, weigh evidence, or find facts on a motion for summary judgment: *Aguonie v Galion Solid Waste Material Inc.* (1998), 38 O.R. (3d) 161 (C.A.); *Dawson v. Rexcraft Storage & Warehouse Inc.* (1998), 164 D.L.R. (4th) 257 (Ont. C.A.).

...

Rule 20.04 (2.1) is a statutory reversal of the case law that had held that a judge cannot assess credibility, weigh evidence, or find facts on a motion for summary judgment. Further, under rule 20.04 (2.2), a judge for the purpose of weighing the evidence, evaluating credibility, and drawing inferences may order that oral evidence be presented by one or more parties, with or without time limits on its presentation.

Placed in the context of the other amendments to Rule 20, the purposes of the change from "no genuine issue for trial" to "no genuine issue requiring a trial" in the test for a summary judgment are: (1) to make summary judgment more readily available; and (2) to recognize that with the court's expanded forensic powers, although there may be issues appropriate for trial, these issues may not require a trial because the court has the power to weigh evidence on a motion for summary judgment.

- [13] Later in the case, Justice Perell makes it clear that the onus is on the moving party to show that a trial would be a "failure of procedural justice because the holding of a trial is unnecessary": see para. 28 – 30 of the decision.
- [14] However, it is also clear from the decision that summary judgment will not eliminate trials of issues. At para. 30 and 31, Justice Perell states:

In this regard, it is important to precisely identify the issues to be resolved because the nature of the particular issues to be resolved both qualitatively and quantitatively will be relevant to determining whether a trial is necessary. For example, to resolve some issues, it may be necessary for a judge to have the opportunity to directly observe, hear, and question a witness. Or, for example, an action may turn on credibility and a transcript of evidence along with the documentary evidence may not - in the particular circumstances of the case - be adequate for the court to evaluate credibility. In such a case, there would be a genuine issue requiring a trial or there would be the need to resort to the court's new powers to order evidence to be called as a part of the summary judgment procedure. But, in another case, the issues may be such that the motions judge could decide the credibility issue on the motion for summary judgment.

... Trials will not disappear under the new regime. The determinant will not be whether the litigant wants a trial but whether a litigant needs one to obtain substantive and procedural justice.

- [15] I note that Justice Perell states that issues must be addressed by a court both on a “qualitative and quantitative” basis.
- [16] Mr. Tiidus submits that a trial would be unnecessary in the present case because, as noted above, the incident in question is clearly unforeseeable. There is little evidence that the person who perpetrated the attack was a patron of Sin City. There is accordingly no evidence that there was anything that could have been done by this Defendant to prevent the incident from occurring. There was no fight within the bar and accordingly no duty of care requiring Sin City to watch what was going to occur outside as took place in *Murphy v. Little Memphis Cabaret Inc.*, [1996] O.J. No. 4600 (Gen. Div.) where a fight inside the bar was continued outside, resulting in liability. He notes that although there is a special relationship between a establishment and the patron, this relationship cannot protect a plaintiff where the risk is unforeseeable: see *Stewart v. Pettie*, [1995] S.C.J. No. 3.
- [17] On the other hand, Mr. Cox-Kikkajoon states that this is not a simple negligence case. It is not only based upon the special relationship between hotelier and customer as set out above. His theory is that this is, as well, an occupiers liability case and that the *Occupiers’ Liability Act*, R.S.O. 1990, c. O.2 applies to this situation. He says that this puts a positive duty on the barkeep to both actively monitor the alcohol consumption of individual patrons of the bar, as well as to provide security on the sidewalk outside the premises, especially when the bar lets out at last call. He states that there was a breach of this duty which led to the assault and the resulting injuries. He relies upon an expert’s report prepared by Mr. Summerville which was filed with his materials; that expert’s report opines that there was a breach of the duty of care owing by this Defendant to the Plaintiff.
- [18] The *Occupiers’ Liability Act* does not require ownership of the lands for an individual to be an occupier. Section 1 of the Act defines an “occupier” as, *inter alia*, “a person who has responsibility for and control over the condition of premises or the activities carried on, or control over persons allowed to enter the premises”.
- [19] Once someone is an occupier of premises, the duty of care as set out in s. 3 of the *Occupiers’ Liability Act* comes into play:
3. (1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

(2) The duty of care provided for in subsection (1) applies whether the danger is caused by the condition of the premises or by an activity carried on on the premises.

(3) The duty of care provided for in subsection (1) applies except in so far as the occupier of premises is free to and does restrict, modify or exclude the occupier's duty.

- [20] In *Moody v. Toronto (City)*, [1996] O.J. No. 3418 (Gen. Div.), Justice Dambrot confirmed that, in "special circumstances" an occupier may come within the definition even where there it is shown that the premises were a public sidewalk. At para. 5 and 6 of the decision, he states as follows:

The Divisional Court, in *Slumski v. Mutual Life* (Feb. 10, 1994) has made clear that in view of this definition, the owner or occupier of a property adjacent to a public sidewalk is not, in respect of the sidewalk, an "occupier" of "premises" within the meaning of the Act, and does not owe a duty of care to users of the sidewalk, absent special circumstances. Ordinarily, remedies in slip and fall cases on public sidewalks lie in the Municipal Act. This flows from the definition of "occupier" set out above.

The reason that an adjacent owner can be liable in "special circumstances" also flows from the definition of "occupier". In *Bogoroch v. Toronto* (Ont. Ct. Gen. Div., June 20, 1991), for example, the defendant had a permit from the City to use a portion of the sidewalk to sell his goods, and occupied the remaining portion "as an aisle of its store from which both the general public and its customers could view and buy goods." In those circumstances, Then J. understandably concluded that the defendant was in physical possession of the premises (that is, the sidewalk) within the meaning of the present s. 1(a) of the Act.

- [21] In that case, it was decided that the owners of Skydome were occupiers of a public walkway used almost exclusively by Skydome patrons.
- [22] Mr. Cox-Kikkajoon has filed as part of his materials the report of Mr. Summerville dated April 2, 2010. It is acknowledged that the standard of care to be applied would be that in effect in 2002; it is also acknowledged in the report that there were no industry standards at that time. Mr. Summerville gives an opinion that Sin City did not provide proper training for their staff and failed to have an adequate security presence in this matter.
- [23] Mr. Summerville provided a curriculum vitae in this matter indicating his expertise in the area of security in the hospitality industry. Mr. Cox-Kikkajoon pointed out that Mr. Summerville has been qualified as an expert in other cases: see *Dumencu v. Atherley Arms Hotel*, (Ont. S.C.J., November 18, 2009).
- [24] Mr. Tiidus disagrees that Mr. Summerville could be qualified as an expert. He points out that the report addresses exactly the issue that the trier of fact is being asked to review; was the barkeep negligent in its operation of the premises as noted above? He notes that

an expert cannot be asked to usurp the job of the trier of fact, and that, in any event, Mr. Summerville would not be qualified as an expert in any event. He states that the report should be discounted and that summary judgment should accordingly go.

- [25] It should firstly be noted that witness credibility, for the purposes of this motion, appears to be somewhat unimportant, as it is acknowledged that there is little issue on the basic facts surrounding this matter. Indeed, Mr. Tiidus relies upon the affidavit of a lawyer in his firm in this motion for summary judgment. The real issue for me is whether the sole issues are those raised by Mr. Tiidus or are there other issues which may require a trial of the issues.
- [26] If the only issue before the court were the issues outlined by Mr. Tiidus in his factum, *vis.* the negligence of the bartender and whether the incident was, in fact, foreseeable, it may very well be appropriate to dismiss the Plaintiff's case against Sin City. However, that is not the only issue that has been raised with me. Mr. Cox-Kikkajoon has also raised the issue of occupiers' liability, which is a further duty on the occupier to take reasonable care that persons entering onto the premises are "reasonably safe" while on the premises. This would, for example, go to the issue of whether security staff on the sidewalk would have deterred the attack on the Plaintiff. It goes to safety issues which are situational, rather than being based solely upon the foreseeability of a particular incident.
- [27] I go back to the admonition of Justice Perell that a case may very well be determined based upon evidence and that the evidence is considered both in a "qualitative" and in a "quantitative" manner. What is important in that statement is that the evidence may be considered qualitatively; in other words, the quality of the evidence is crucial to the result. That does not necessarily speak to a witness' credibility; it speaks to, as many lawyers discuss, the issue of how the evidence actually goes in and the demeanour or personality of the particular witness. In certain cases, this is important and is not reflected in written material before a justice considering summary judgment. In such a case, in my view, a trial is necessary because it is necessary to judge the veracity of the evidence.
- [28] This is, in my view, one of those cases. A trier of fact needs to hear, for example, descriptions from witnesses as to the situation outside Sin City on April 12, 2002. A juror may very well have to hear directly what the owner has to say about training of security staff and his position as to stationing such staff in front of his establishment. These are qualitative matters not apparent from written materials, and those descriptions may be relevant to the end result, even though we know the basic sequence of events. This being the case, I cannot adequately address these issues in a motion for summary judgment.
- [29] I am accordingly of the view that this is a matter which requires a trial of the issues. In the words of Justice Perell, I find that to deprive the Plaintiff of a trial would be a failure of procedural justice. In addition to the issue of the quality of the evidence, and whether it is necessary for a fair determination of liability, I also find that a trial is necessary for the following reasons:

- a. I believe that it is in order for the Plaintiff to bring forward evidence which may show Sin City to be an occupier of the sidewalk in front that establishment. As that Defendant does not own the sidewalk, the evidence would have to be such that it would indicate “special circumstances” which would go to that Defendant being an occupier as examined in *Moody v. Toronto, supra*;
- b. I further believe that the Plaintiff should have the right to lead evidence to show, if it can, either through Mr. Summerville or otherwise, to prove a failure to meet the duty to maintain a safe premises in the event that this Defendant is found to be an occupier of the sidewalk; and
- c. I understand that Mr. Summerville may not be qualified as a witness. However, this should be determined in a voir dire with cross-examination, and not on a summary judgment motion, as was done in *Dumencu v. Atherly Arms Hotel, supra*. Moreover, even if that individual cannot be qualified as an expert, this does not mean that he cannot give evidence as to facts which may be within his knowledge, including the practice of the trade regarding security and safety issues for hoteliers. This may not, in other words, be opinion evidence which only an expert can give; this is evidence of the facts surrounding the practice of the trade, which goes to the issue of duty of care.

[30] I am not, of course, deciding anything on the merits of the case; I am only determining that I do not believe that I can fairly make this determination summarily on a motion. Accordingly, the motion for summary judgment is dismissed.

[31] The parties may speak to the issue of costs through providing written submissions, including costs outlines. The Plaintiff shall provide those submissions within 10 days of this decision, and those submissions, not including any offers or costs outlines, shall not be more than five pages in length. The responding Defendant shall provide its responding submissions within five days of service of the Plaintiff’s costs submissions, again subject to the same constraints. The Plaintiff may provide reply submissions not more than three pages in length to be served and filed five days after receipt of Sin City’s costs submissions.

McDERMOT J.

Date: April 21, 2011

